



## ELECTRONICS CORPORATION OF INDIA LIMITED

A Govt. of India (Dept. of Atomic Energy) Enterprise  
ECIL (Post), Hyderabad – 500062, Telangana, India

### ITSD/CSS.

### REQUEST FOR QUOTATION

**Tender No: ECIL/ITSD/PUR/1100000184**

#### Details of RFQ

|                                     |   |                                                                                                                                                                                                             |           |
|-------------------------------------|---|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|
| Scope of Supply                     | : | Supply and Integration of additional SAP ECC 6.0 end user authorizations with existing platform and Support - Reg.as per Technical Specifications mentioned in Annexure-T1 (Section-III) to ECIL-Hyderabad. |           |
| Method of Tender                    | : | Two-Part Bid System (Simultaneous receipt of separate Technical and Financial Bids)                                                                                                                         |           |
| Important Dates:                    |   | Date                                                                                                                                                                                                        | Time      |
| Tender Publishing Date              | : | <b>30.04.2026</b>                                                                                                                                                                                           |           |
| Tender Document Download Start Date | : | <b>30.04.2026</b>                                                                                                                                                                                           |           |
| Pre Bid meeting                     |   | <b>07.05.2026</b>                                                                                                                                                                                           | 10.30 Hrs |
| Due Date for Submission             | : | <b>21.05.2026</b>                                                                                                                                                                                           | 15:00 Hrs |
| Opening of Techno-Commercial Bid    | : | <b>21.05.2026</b>                                                                                                                                                                                           | 15:30 Hrs |
| Contact Person mail Details         | : | cmgpur@ecil.co.in                                                                                                                                                                                           |           |



## ELECTRONICS CORPORATION OF INDIA LIMITED

A Govt. of India (Dept. of Atomic Energy) Enterprise

ECIL (Post), Hyderabad – 500062, Telangana, India

|              |                   |                                                                                                                 |
|--------------|-------------------|-----------------------------------------------------------------------------------------------------------------|
| Telephone:   | 040-27182415      | Sr.DGM (Purchase),ITSD/IT & TG,<br>Electronics Corporation of India Limited,<br>ECIL (P.O), Hyderabad – 500 062 |
| Direct Line: | 040-27186261      |                                                                                                                 |
| e-Mail:      | cmgpur@ecil.co.in |                                                                                                                 |

Tender No:**ECIL/ITSD/PUR/1100000184**

**Date: 30.04.2026**

Dear Sir,

This document is a Request for Proposal (RFP), intended to elicit Technical and Commercial bid and Price Bid information from potential vendors of IT infrastructure hardware and systems software to meet Procurement of SAP Audit and Max Attention Services of 400 Man-days to utilize within one year as per Technical Specifications mentioned in Annexure-T1 to ECIL-Hyderabad as per technical specifications in Section-VII

Electronics Corporation of India Ltd., (ECIL) a Government of India undertaking with its registered office at ECIL P.O, Hyderabad – 500062, invites Bids through e-Procurement portal (<https://etenders.ecil.co.in>) as per Essential Details of Items Required in SECTION -II of this RFQ. This RFQ is being issued on Two-Part Bid basis. The firm has to upload Techno-Commercial Bid in the Technical Part of the online tender and Price Bid in the financial offer part of the online tender.

- The address and contact numbers for sending documents or seeking clarifications regarding this RFQ are given below.

|    |                 |   |                                                                                                                                                                                                                                                                 |
|----|-----------------|---|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| a) | Contact details | : | <b>For Technical clarifications:</b><br>1) Shri. PNV Srinivasa Rao, SDGM (Technical), Tel: 040 27182369.<br>Email: pnvsrinu@ecil.co.in                                                                                                                          |
|    |                 | : | <b>For other RFQ related clarifications:</b><br>Sr.DGM (Purchase),<br><b>ITSD -Purchase</b><br>Electronics Corporation of India Limited, ECIL (P.O),<br>Hyderabad – 500 062<br>Tel Nos.040-27186261<br>Direct Line: 040-27182209<br>Email ID: cmgpur@ecil.co.in |
|    |                 | : | <b>For eProcurement portal related clarifications:</b><br>Help Desk No.: 040-27186294/6652/2273<br>Email: <a href="mailto:etendering@ecil.co.in">etendering@ecil.co.in</a>                                                                                      |

2. This RFQ is divided into Five Sections as follows:

| #  | Sections    | Document Description                                                            | Page No. |
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1. This RFQ is being issued with no financial commitment and ECIL as a Buyer reserves the right to change or vary any part thereof at any stage. Buyer also reserves the right to withdraw the RFQ, should it become necessary at any stage without assigning any reason, whatsoever. ECIL shall have no liability for above mentioned actions.

Thanking you,  
Yours faithfully,

**For Electronics Corporation of India Limited**

**Sr.DGM – Purchase (ITSD/CSS)**

**Encl.:** RFQ Section I to VI and Annexure A to M.

## **Section I – General information and Instructions for the Bidders**

- 1. Due Date: Last Date and Time for Uploading the Bids: (15:00Hrs on 21.05.2026)**  
Bids should be submitted by due date and time through e-procurement portal of ECIL for Supply of items mentioned in Section - II of RFQ.
- 2. Manner of Submitting the Bids:**  
The bidder is required to submit soft copies of their bids electronically on ECIL e-Procurement Portal, using valid Digital Signature Certificates. For necessary instructions please refer to the “User Manual for Vendor” and “User Manual of Bid Preparation” documents available in the Learning Center link on e-Procurement portal. Bids sent by post, fax, mail or e-mail will not be considered.
- 3. Method of Tender: TwoPart Bid System**  
Bidder should submit Techno-commercial & price bids separately. The Techno-commercial bid would be opened on the date of bid opening. Price bid will be opened, only when Techno-commercial bids are found to be qualified. Any reference to price in TECHNO-COMMERCIAL BID will render the bid invalid and such bid shall be rejected summarily.
- 4. Opening of Bids:Time and Date for Opening of Bids: (15:00Hrs on 21.05.2026)**  
If due to any exigency, the bids are not opened on the date and time mentioned above, the bids will be opened on the next working day.
- 5. Validity of Bids:**  
The Bids should remain valid **upto120 days** from the final tender due date.
- 6. Bid Security Declaration:**  
In place of a Bid Security, every bidder has to sign a bid security declaration form accepting that if they withdraw or modify their bids during the period of validity, or if they are awarded the contract and they fail to sign the contract, or to submit a performance security (if required) before the deadline defined in the tender document, they will be suspended for the period of one year as specified in the Bid Security Declaration Form, from being eligible to submit bids for contracts with the entity that invited the bids. Every Bidder is required to submit the Bid Security Declaration Form as per **Annexure - A**
- 7. Clarification regarding contents of the RFQ:**  
Bidder requiring clarification regarding the contents of the RFQ shall notify to the Buyer in writing about the clarifications sought not later than the date mentioned in the RFQ for clarifications. Clarification by the buyer will be sent by e mail or by Speed Post.
- 8. Modification and Withdrawal of Bids:**  
Bidder may modify or withdraw his bid after submission prior to due date and time prescribed for submission of bids. In case of modification / revision, the latest submitted bid will be treated as valid bid. Bids cannot be modified after the due date for submission of bids.
- 9. Clarification regarding details/contents of the Bids:**  
The Buyer may, at his discretion, ask the bidder for clarification of their submitted bid in writing. Change in prices or substance of the bid will not be sought, offered or permitted.

**10. Pre-Bid Meeting:**Pre-bid meeting will be held in ITSD Conference Hall, ITSD, IT&TG building, ELECTRONICS CORPORATION OF INDIA LIMITED, ECIL P.O., HYDERABAD – 500062. Clarifications to RFQ may be sought through mail. A pre-bid meeting will be held at 10:30hrs on **07.05.2026**(date) at ECIL, Hyderabad (venue) to answer any queries or to clarify doubts regarding submission of proposals / Quotation. Bidders or their authorized representatives (duly authorized in writing) are invited to attend. Authorized representatives should also carry his/her identity proof. This event will not be postponed due to non-presence of your representative. ***The bids of vendors who attend the pre-bid meeting will only be considered for evaluation after tender opening.*** For intimation / clarification please contact below executives

- 1) PNV Srinivasa Rao  
(Tel. 040-27182369  
Mobile 9491696792)  
email: [pnvsrinu@ecil.co.in](mailto:pnvsrinu@ecil.co.in)

**11. Preparation of Bids:**

- (a) Bid should confirm to product specifications as given in Section –VII supported by Technical Literature. Deviations, if any, shall be indicated, against each specification of the product/material.
- (b) Bidder should furnish detailed Bill of Materials (BOM) mentioning Part No, Make, Model & Country of Origin (other than China) in the format provided as Annexure-F1 without mentioning prices.
- (c) Bidder should furnish Item wise Bill of Materials (BOM) of all the components modules, sub modules & services clearly mentioning Part Number, Make & Model in item wise BOM format provided as Annexure-F2
- (d) Bids not complying with specifications will be rejected summarily.
- (e) Bidder should take into account any clarification/corrigendum published on the tender document before submitting their bids.
- (f) The bidder has to digitally sign and upload the required bid documents one by one as indicated in the tender document as per documents check list provided as Annexure-J.

**12. Amendments to RFQ:**

The buyer reserves the right to issue any amendments, corrigendum, clarification, etc. to the RFQ, giving reasonable time to the Bidder, prior to the due date and time for online bid submission. Bidders are requested to update themselves on ECIL e-Procurement portal for the details such as pre-bid clarifications, corrigenda and other documents forming a part of subject RFQ, before submission of their bid.

**13. OEM Authorization letter:**

- ~~(a) Bidder should submit Authorization letter from OEM for bidding, supply and full support during installation and warranty period.~~
- ~~(b) Bids without OEM Authorization letter specific to this RFP will be rejected.~~

**14. Rejection of Bids:**

Canvassing by the Bidder in any form, unsolicited letter and post-tender correction may invoke summary rejection of the Bid. Any non-conformity with the techno

commercial clauses and technical specifications mentioned in the RFQ will lead to Rejection of Bids.

**15. Cancellation of the Tender:**

- (a) ECIL reserves the right to accept the bids in full or in part or cancel the Tender in its entirety, at its sole discretion, without assigning any reasons, whatsoever.
- (b) ECIL has the right to close the tender even after evaluating the quotations without assigning any reason.

## **Section II – Essential Details of Items Required**

| <b>Particulars</b>                              | <b>Sl. No.</b> | <b>Terms and Conditions</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | <b>Compliance required</b> | <b>(Yes/No) with Deviation if any</b> |
|-------------------------------------------------|----------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------|---------------------------------------|
| <b>Delivery Period:</b>                         | 1.1            | Supply and Integration of additional SAP ECC 6.0 end user authorizations with existing platform and Support as per Technical Specifications mentioned in Annexure-T1 shall be completed Phase-wise as mentioned from the date of electronic transmission of ink signed Purchase Order.                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | Complied                   |                                       |
| <b>Mode of Delivery</b>                         | 2.1            | Supply and Integration of additional SAP ECC 6.0 end user authorizations with existing platform and Support at ECIL-Hyderabad.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | Complied                   |                                       |
| <b>Bid Evaluation Criteria:</b>                 | 3.1            | <p>The landed cost for Total scope of RFQ shall be considered including taxes, Duties.</p> <p><b>Variation in Payment Terms:</b></p> <p>The Bidder has to necessarily accept the RFQ payment term only. Else, the Bids for conditional price (such as conditional discount, advance payment, no. of day's payment) may be rejected.</p> <p>The decision of ECIL is final and binding on the Bidders in this regard.</p>                                                                                                                                                                                                                                                                                                                                          | Complied                   |                                       |
| <b>Eligibility and Qualification Criteria :</b> | 4.1            | The Bidder can be Proprietorship / Partnership Firm / Limited Liability Partnership / Private Limited / Limited company / Society registered under Society's Act / Statutory Bodies etc. & should be operational from at least last three years as on 31.03.2026. Bidder should submit certificate of registration/incorporation / Partnership Deed / Memorandum and Articles of Association / any other equivalent document showing date and place of incorporation, as applicable.                                                                                                                                                                                                                                                                             | Complied                   |                                       |
|                                                 |                | <p>(a) Bidders should have well established office set up and registration with Tax Department and shall provide required Certificate of Registration wherever applicable, viz., PAN No, GSTN etc.</p> <p>(b) Bidders should have presence in India from last three years as on 31<sup>st</sup> March 2026. Bidder should submit certificate of registration/incorporation / Partnership Deed / Memorandum and Articles of Association / any other equivalent document showing date and place of incorporation, as applicable.</p> <p>(c) The Bidder should have experience in Development and Implementation mentioned as part of this RFQ during last 5 years (ending last day of the month before the one in which tender has been invited) of any value.</p> | Complied                   |                                       |

|                          |                                                                                                       | <p>Bidder should enclose copies of Contract / Purchase Order in support of above.</p> <p>(d) During the last five years, the bidder shall have supplied similar items as under:</p> <p>1) Single order of value Rs.250.00 lakhs or more <b>OR</b></p> <p>2) Two orders each of value Rs.190.00 lakhs or more <b>OR</b></p> <p>3)Three orders each of value Rs.150.00 lakhs or more.</p> <p>(e) The Bidder Firm / company should have total Turn-over of 600.00 Lakhs (minimum) for last 3 years ending 31.03.2026. Bidder can submit certificate from practicing Chartered Accountant <b>OR</b> Audited balance sheets, IT Returns and P&amp;L account for these financial years should be furnished.</p>                                                                                                                                                     |              |  |              |                                            |         |                                                                                                       |         |              |                   |                                                      |                  |             |        |  |
|--------------------------|-------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------|--|--------------|--------------------------------------------|---------|-------------------------------------------------------------------------------------------------------|---------|--------------|-------------------|------------------------------------------------------|------------------|-------------|--------|--|
|                          |                                                                                                       | The Bidder Firm/ Company should not have been blacklisted, debarred or prosecuted by any Central Government or State Government Department/ Government Organization/ PSU for corrupt, fraudulent or any other unethical business practices. Bidder shall not have any litigation pending with any of the Govt. organizations.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Complied     |  |              |                                            |         |                                                                                                       |         |              |                   |                                                      |                  |             |        |  |
| <b>Delivery Details:</b> | 5.1                                                                                                   | Development and Implementation at <b>ECIL-Hyderabad.</b><br><u>Address:</u><br>ITSD Stores,<br>IT&TG Building,<br>ECIL, Hyderabad, 500062<br>GST No: 36AAACE4809L1ZJ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Noted        |  |              |                                            |         |                                                                                                       |         |              |                   |                                                      |                  |             |        |  |
| <b>EMD:</b>              | 6.1                                                                                                   | <p>Earnest Money Deposit (EMD) Rs.3,00,000.00 shall be submitted through DD/Wire transfer in favor of M/s. Electronics corporation of India Ltd, failing which the Quotation will not be considered. EMD is exempted for MSEs (documentary proof of the same need to be submitted) provided with Bid Security Declaration.</p> <table border="1"><thead><tr><th colspan="2">BANK DETAILS</th></tr></thead><tbody><tr><td>In Favour of</td><td>M/s. Electronics Corporation of India Ltd.</td></tr><tr><td>Address</td><td>Door No. 8-2-684/2/A, Ist Floor, Anand Banjara Colony, Road No. 12, Banjara Hills HYDERABAD – 500 034</td></tr><tr><td>Tel No.</td><td>040-23421427</td></tr><tr><td>Bank Branch Name.</td><td>State Bank of India, Corporate Clients Group Branch.</td></tr><tr><td>Type of Account.</td><td>Cash Credit</td></tr></tbody></table> | BANK DETAILS |  | In Favour of | M/s. Electronics Corporation of India Ltd. | Address | Door No. 8-2-684/2/A, Ist Floor, Anand Banjara Colony, Road No. 12, Banjara Hills HYDERABAD – 500 034 | Tel No. | 040-23421427 | Bank Branch Name. | State Bank of India, Corporate Clients Group Branch. | Type of Account. | Cash Credit | Agreed |  |
| BANK DETAILS             |                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |              |  |              |                                            |         |                                                                                                       |         |              |                   |                                                      |                  |             |        |  |
| In Favour of             | M/s. Electronics Corporation of India Ltd.                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |              |  |              |                                            |         |                                                                                                       |         |              |                   |                                                      |                  |             |        |  |
| Address                  | Door No. 8-2-684/2/A, Ist Floor, Anand Banjara Colony, Road No. 12, Banjara Hills HYDERABAD – 500 034 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |              |  |              |                                            |         |                                                                                                       |         |              |                   |                                                      |                  |             |        |  |
| Tel No.                  | 040-23421427                                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |              |  |              |                                            |         |                                                                                                       |         |              |                   |                                                      |                  |             |        |  |
| Bank Branch Name.        | State Bank of India, Corporate Clients Group Branch.                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |              |  |              |                                            |         |                                                                                                       |         |              |                   |                                                      |                  |             |        |  |
| Type of Account.         | Cash Credit                                                                                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |              |  |              |                                            |         |                                                                                                       |         |              |                   |                                                      |                  |             |        |  |

|                                         |     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |             |        |  |
|-----------------------------------------|-----|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|--------|--|
|                                         |     | Bank Account No.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | 10187982942 |        |  |
|                                         |     | Bank MICR Code.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | 500002147   |        |  |
|                                         |     | Bank RTGS IFSC Code                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | SBIN0013039 |        |  |
|                                         |     | Bank NEFT IFSC Code                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | SBIN0013039 |        |  |
|                                         |     | Swift Code.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | SBININBB659 |        |  |
| <b>Exemption for submission of EMD.</b> | 6.2 | <p>a) If Bidder's company is a manufacturer for the quoted products, please mention clearly. MSE benefits can be only given to Manufacturers registered under UDYAM for the quoted products of this tender.</p> <p>(b) Traders/Bidders/distributors/authorized agents will not be considered for availing benefits under PP Policy 2012 for MSEs as per MSE guidelines issued by MSME. (MSME Office Memorandum F.No. 22(1)/2012- MA) dated 24<sup>th</sup> Oct 2016)</p> <p>(c) The MSE Bidders shall ensure that nature of services and goods/items manufactured mentioned in MSE's certificate matches with the nature of the services and goods /items to be supplied as per Tender.</p> <p>(d) The registration certificate issued from UDYAM must be valid as on Bid closing date of the tender</p> |             | Noted. |  |
| <b>Free Issue Material</b>              | 7.1 | -Nil-                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |             | Noted. |  |
| <b>ECIL Inputs</b>                      | 8.1 | -Nil-                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |             | Noted  |  |

## **Section III – Scope of Work**

### **Annexure-T1**

Supply and Integration of additional SAP ECC 6.0 end user authorizations with existing platform and Support as per Technical Specifications mentioned in Annexure-T1 to ECIL-Hyderabad.

#### **Technical Specifications:**

##### **Overview of the present Request for Quotation (RFQ)**

In order to automate the business activities for smooth & effective management, SAP ECC 6.0 EHP8.0 with dB2 backend database is being implemented in its Data Center.

ECIL has implemented SAP ERP and some of the modules Implementation in progress. Refer below for list of modules has been implemented across Organization through third party vendor.

##### **Functional Modules**

- Human Capital Management (HCM)
- Payroll (PY)
- Financial Accounting (FI)
- Controlling (CO)
- Materials Management (MM)
- Production and Planning (PP)
- Quality Management (QM)
- Sales and Distribution (SD)
- Plant Maintenance (PM)
- Project Systems (PS)
- Environment Health & Safety (EHS)
- Document Management System (DMS)
- Treasury and Risk Management (TRM)
- Business Planning and Consolidation (BPC)
- Governance, Risk & Compliance (GRC)
- Employee Self Service and Managerial Self Service (ESS/MSS)
- Training and Event Management (TEM)
- Travel Management (TM)
- Product Life Cycle Management (PLM)
- eRecruitment

##### **Technical Modules**

- Basis Administration
- ABAP
- SAP Portal
- Solution Manager

ECIL has purchased SAP PI (Process Integration) and SAP PO (Process Orchestration) are on-premise middleware solutions used to connect SAP and non-SAP systems, enabling seamless data exchange and business process automation. PO is the newer evolution of PI, combining integration with business process management and rules provides an added advantage.

PI/PO acts as a central hub for integrating applications, reducing the complexity of point-to-point connections.

It maps data formats between systems and manages message flow, routing data using various protocols like sFTP, SOAP, and REST.

PI was the earlier, often dual-stack (ABAP + Java) version, whereas PO is Java-only (single stack) and includes Process Integration, Business Process Management (BPM), and Business Rules Management (BRM).

### **Detailed Scope of work**

The description given here is broad scope of work to be carried out by the bidder. However, any work even if not specifically mentioned but reasonably implied for the successful implementation and good performance of the system are deemed to be included in the scope of work.

This scope of work divided in two phases as mentioned below

- Phase 1 : Supply and Integration of additional SAP ECC 6.0 end user authorizations with existing platform and Support
- Phase 2 : Integration of 3rd Party Application with SAP ECC6.0 through PI/PO module through API Integration and Web Services

Supply of deployment of required number of skilled SAP resources onsite and offshore model for implementing the above mentioned Phase1 & 2.

All the above Integrations to be developed in Compatible with Fiori3.0 for smooth migration to S/4 HANA

The successful bidder shall be responsible for:

- a) Process, Configuration, Integration, Migration of data, testing and support
- b) SAP Landscape migration
- c) Periodic Back Up and System Refresh/Client Copy Activity
- d) The successful bidder shall upgraded version of the ERP SAP ECC 6.0 EHP8.0 implemented in ECIL. ECIL may choose to upgrade the version of the product depending on the additional functionality & features offered. Successful bidder shall also support the upgraded version of SAP, if necessitated, during the support period.
- e) The successful bidder should apply the necessary patches and releases, as and when available on development, quality and production environment. The patches should be tested by the support team in Development/Quality environment and subsequently UAT shall be carried out by the end users in the Testing environment before they are implemented in production.
- f) The successful bidder shall implement SAP Notes as and when required without any additional cost.
- g) ECIL will provide required devices (Laptops) for performing their duties at ECIL Office.
- h) The successful bidder shall maintain all the necessary documentation (i.e., Functional and Technical Specs, Test scripts,) for any changes they perform in the system.
- i) The successful bidder shall also be responsible for conducting the User acceptance testing for the same where the users will participate.
- j) The successful bidder shall suggest suitable Custom T codes / Roles and Authorizations for using the SAP system by all types of users.

- k)** The successful bidder shall hand hold the activities so as to guide the users wherever required.
- l)** Successful bidder shall provide the required training for processes to the users as per the requirement. Training materials ( soft copies or hard Copies ) shall be provided as per the requirement.
- m)** The successful bidder shall perform SAP BASIS activities in Development, Quality and Production servers/ environment across SAP landscape.
- n)** Help AMC vendor shall perform all the System Monitoring and health check activities for smooth running of the servers.
- o)** Any SAP product level issues needs to be intimated through SAP market place and follow up on the same to be done for quick resolution.
- p)** The successful bidder shall follow the holiday calendar of ECIL. They should deploy support team during the ECIL working days from Monday to Saturday (9.00 AM to 5.30 PM). The vendor team has to work late after working hours and attend issues on holidays as and when required without any additional cost to ECIL.
- q)** Police Verification certificates (PVC) shall be submitted for all the staff of the successful bidder who are going to be deployed for the project.
- r)** The successful bidder should provide contact numbers, email addresses, escalation matrix of a dedicated support team. ECIL shall be kept informed well in advance in case of any changes in the contact details.

### **SAP ERP Implementation Plan**

Expecting to complete the Phase 1 – 2 activities within in 6 months from the Date of Issuance of LOI/PO. The proposed phase wise SAP Audit plan is as follows:

| <b>S.No</b> | <b>Activity</b>    | <b>Time Lime</b> |
|-------------|--------------------|------------------|
| 1           | LOI/PO Issue       | T0               |
| 2           | Phase 1 Completion | T0 + 1 Month     |
| 3           | Phase 2 Completion | T0 + 6 Months    |

Note: Beyond 6 months LD is applicable for pending Milestones as per PO terms and conditions.

### **Deliverables**

- a)** Scope Document
- b)** Weekly progress report.
- c)** Minutes of all the meetings held with the users, vendors and other stake holders.
- d)** Configuration documents, Functional Specification Document, Technical Specification document, and source code.
- e)** Test Scripts and Test Reports
- f)** Patch upgrades documentation as and when the patch upgrade activity is performed.
- g)** User Manuals and Training documents.
- h)** The Hardware Configuration details ( optional)
- i)** Hardware Migration Handover to existing AMC vendor and ECIL team also for future maintenance. Required documents and trainings to be provided.

## **Section IV – Standard Terms and Conditions**

The Bidder is required to give mandatory confirmation of their acceptance of the Standard Terms and Conditions of the Tender mentioned below, which will automatically be considered as part of the contract concluded with the Bidder. Failure to do so may result in rejection of the Bid submitted by the Bidder.

**1. Law:**

The Purchase Order shall be considered and made in accordance with the laws of India for the time being in force. The Purchase Order shall be governed by and interpreted in accordance with the laws of India.

**2. Effective Date of the Purchase Order (PO):**

The PO shall come into effect on the date of issue of Purchase Order and shall remain valid until the completion of the obligations of the parties under the PO.

**3. Acknowledgement of Purchase Order:**

Order acknowledgment should be sent within 6 business days. Non-receipt of PO Acknowledgement with the prescribed time will be treated as Seller's acknowledgement.

**4. Amendments:**

No provision of present Purchase Order shall be changed or modified in any way (including this provision) either in whole or in part except by an instrument in writing made after the date of this Purchase Order and which expressly states to amend the present Purchase Order.

**5. Termination of Purchase Order:**

The Buyer shall have the right to terminate the Purchase Order in part or in full in any of the following cases: -

- (a) Bidder fails to supply the materials / services as per the agreed specifications.
- (b) The delivery of the material is delayed for causes not attributable to Force Majeure after the scheduled date of delivery with extension thereto if any.
- (c) The Seller is declared bankrupt or becomes insolvent.
- (d) As per decision of the Arbitration Tribunal.

**6. Notices:**

Any notice required or permitted by the contract shall be written in the English language and may be delivered personally or may be sent by FAX or registered pre-paid mail/airmail, addressed to the last known address of the party to whom it is sent.

**7. Arbitration:**

(a) Any disputes or differences arising out of or in connection with the Purchase Order shall be settled by mutual amicable discussions. If this conciliation fails, unresolved disputes, if any, shall be resolved through Sole Arbitral Tribunal as per the provisions of the Arbitration & Conciliation Act, 1996 through the International Centre for Alternative Dispute Resolution (ICADR), Hyderabad, under the ICADR Rules of Arbitration.

(b) The venue for Arbitration proceedings shall be at Hyderabad.

(c) All disputes shall be subjected to exclusive jurisdiction of the Courts in Hyderabad (GHMC) / Medchal-Malkajgiri District, notwithstanding concurrent jurisdiction of other courts of law.

**8. Penalty for use of Undue Influence:**

The Bidder undertakes that he has not given, offered or promised to give, directly or indirectly, any gift, consideration, reward, commission, fees, brokerage or inducement to any person in service of the Buyer or otherwise in procuring the Contracts or forbearing to do or for having done or forborne to do any act in relation to the obtaining or execution of the present Contract or any other Contract with the Government of India for showing or forbearing to show favour or disfavour to any person in relation to the present Contract or any other Contract with the Government of India. Any breach of the aforesaid undertaking by the Seller or any one employed by him or acting on his behalf (whether with or without the knowledge of the Seller) or the commission of any offers by the Seller or anyone employed by him or acting on his behalf, as defined in Chapter IX of the Indian Penal Code, 1860 or the Prevention of Corruption Act, 1986 or any other Act enacted for the prevention of corruption shall entitle the Buyer to cancel the contract and all or any other contracts with the Seller and recover from the Seller the amount of any loss arising from such cancellation. A decision of the Buyer or his nominee to the effect that a breach of the undertaking had been committed shall be final and binding on the Seller. Giving or offering of any gift, bribe or inducement or any attempt at any such act on behalf of the Seller towards any officer/employee of the Buyer or to any other person in a position to influence any officer/employee of the Buyer for showing any favour in relation to this or any other contract, shall render the Seller to such liability/ penalty as the Buyer may deem proper, including but not limited to termination of the contract, imposition of penal damages, forfeiture of the Bank Guarantee and refund of the amounts paid by the Buyer.

**9. Non-disclosure cum Confidentiality:**

(a) When purchase order is awarded, the Bidder should undertake to treat purchase order and services to be rendered therein as absolutely confidential and shall not disclose or provide any information, which may come to your knowledge or passed on to you during the execution by ECIL or end customer, to any third party, person or country under any circumstances without prior written consent of ECIL.

(b) The Bidder should keep all technical specifications, scope, details of equipment at and corresponding locations, terms and conditions, including, Drawings, Site Plans as confidential and shall not disclose to any third party, without prior written consent of ECIL.

(c) ECIL reserves the right to initiate legal action as per prevailing law against the Bidder and / or claim damages for non-compliance.

**10. Transfer and Sub-letting:**

The Seller has no right to give, bargain, sell, assign or sublet or otherwise dispose of the Contract or any part thereof, as well as to give or to let a third party take benefit or advantage of the present Contract or any part thereof.

**11. Taxes and Duties:**

**(a) General (in respect of indigenous bidders):**

(i) Bidders must indicate separately the relevant Taxes/Duties likely to be paid in connection with delivery of completed goods specified in RFQ. In absence of this, the total cost quoted by them in their bids will be taken into account in the ranking

of bids.

(ii) If a bidder is exempted from payment of any duty/tax up to any value of supplies from them he should clearly state that no such duty/tax will be charged by them up to the limit of exemption which they may have. If any concession is available in regard to rate/quantum of any Duty/tax, it should be brought out clearly. In such cases, relevant certificate will be issued by the Buyer later to enable the Seller to obtain exemptions from taxation authorities.

(iii) Any upward changes in levies, taxes and duties levied by Central/State governments such as CGST, SGST & IGST etc. on final product upward as a result of any statutory variation taking place within contract period shall be allowed reimbursement by the Buyer, to the extent of actual quantum of such duty/tax paid by the Seller. Similarly, in case of downward revision in any such duty/tax, the actual quantum of reduction of such duty/tax shall be reimbursed to the Buyer by the Seller. All such adjustments shall include all reliefs, exemptions, rebates, concession etc. if any, obtained by the Seller.

(iv) In case of extension of Delivery Period any increase in taxes, duties, levies etc. will not be paid to the seller unless the reasons for the delay are attributable to Buyer. In case of decrease the difference to be passed on to the buyer.

**(b) GST:**

(i) Bidders should quote GST separately in their quote. In the absence of any such stipulation in the bid, it will be presumed that the prices quoted by the Bidders are inclusive of GST and no liability of GST will devolve upon the Buyer.

(ii) On the Bids quoting GST extra, the rate, the type of GST – Centre, State, Integrated, Union Territory applicable at the time of supply should be shown separately. GST will be paid to the Seller at the rates mentioned in schedule of GST rates, based on the HSN code and as notified by the GST council.

**12. Paying Authority:**

The payment of bills will be made by Sr. DGM, Bills, ECIL. All payments will be released from ECIL, Hyderabad through e-payment by ECS/EFT mechanism.

The following documents are to be submitted by the seller with the items for making the payment:

(a) Ink-signed (Original) copy of Tax Invoice favoring 'Electronics Corporation of India Limited, Hyderabad (GST No: 36AAACE4809L1ZJ).

(b) E-Invoices must contain "ACK No.", "IRN No.", "IRN Date" and "QR Code".

(c) Packing list / Delivery Challan

(d) Phase-wise Completion certificate signed by ECIL Project In-charge.

(e) Deliverables as per PO Scope.

(f) CoC for PO Deliverables.

(g) Order Amendments (if any)

(h) Details for electronic payment viz. Account holder's name, Bank name, Branch name and address, Account type, Account number, IFSC code, MICR code, (in case of imports SWIFT Code and BIC number also). Towards making electronic payments account details through cancelled cheque to be submitted.

**13. Force Majeure clause:**

Neither party shall bear responsibility for the complete or partial non-performance of any of its obligations (except for failure to pay any sum which has become due on account of receipt of goods under the provisions of the present contract), if the non-

performance results from such Force Majeure circumstances as Flood, Fire, Earth Quake and other acts of God as well as War, Military operation, blockade, Acts or Actions of State Authorities, Epidemic, Pandemic, Government Guidelines or any other circumstances beyond the parties control that have arisen after the conclusion of the present contract.

(a) In such circumstances the time stipulated for the performance of an obligation under the present contract is extended correspondingly for the period of time of action of these circumstances and their consequences.

(b) The party for which it becomes impossible to meet obligations under this contract due to Force Majeure conditions, is to notify in written form the other party of the beginning and cessation of the above circumstances immediately, but in any case, not later than 10 (Ten) days from the moment of their beginning.

(c) If the impossibility of complete or partial performance of an obligation lasts for more than 6 (six) months, either party hereto reserves the right to terminate the contract totally or partially upon giving prior written notice of 30 (thirty) days to the other party of the intention to terminate without any liability other than reimbursement on the terms provided in the agreement for the goods received.

**14. Insurance:**

For purchase orders placed on FOR, ECIL basis the necessary insurance to ensure safe transit of material should be catered for by the supplier. Where the terms of delivery are either ex-works or ex-warehouse or FOB/CIF/CIP, the dispatch particulars are to be intimated to ECIL to enable transit with the requisite insurance. The supplier will be responsible for shortage/damage during transit and as such the consignment may be insured by the supplier at his option and cost.

**15. Quality:**

The quality of the goods delivered according to the Contract shall correspond to the technical conditions and standards valid for the deliveries of the same goods for in Seller's country or specifications enumerated as per RFQ and shall also include therein modification to the goods suggested by the Buyer. Such modifications will be mutually agreed to as per amendments to the contract. The Seller confirms that the goods to be supplied under this Contract shall be new, and shall incorporate all the latest improvements and modifications thereto and spares of improved and modified equipment are backward integrated and interchangeable with same equipment supplied by the Seller in the past if any. The Seller shall supply an interchangeability certificate along with the changed part numbers wherein it should be mentioned that item would provide as much life as the original item.

**16. Conditional Offer:**

No conditional offer will be accepted which is not in conformity with the specifications mentioned in the RFQ.

**17. Patents and Other Industrial Property Rights:**

The prices quoted by the bidders shall be deemed to include all amounts payable for the use of patents, copyrights, registered charges, trademarks and payments for any other industrial property rights. The Seller shall indemnify the Buyer against all claims from a third party at any time on account of the infringement of any or all the rights, whether such claims arise in respect of manufacture or use. The Seller shall be responsible for the completion of the supplies including spares, tools, technical

literature and training aggregates irrespective of the fact of infringement of the supplies, irrespective of the fact of infringement of any or all the rights mentioned above.

**18. Shortages/ Damages:**

In the event of shortage / damage noticed upon receipt and opening of packages at ECIL-Hyderabad, all such shortages or damages shall be made good by the bidder within 30 days from the date of reporting, free of all charges.

**19. Rejections/ Replacements:**

- (a) In case of rejection of any lot / part of Lot, the bidder should undertake to provide free replacement within agreed time from the date of email notice, with all associated costs borne by the bidder for delivery of replacement material and collection of rejected material.
- (b) Rejected material, if not collected within 30 days of intimation of rejection, will be retained by ECIL solely at the risk of the bidder.
- (c) Bidder should undertake to replace the materials found to be defective in course of production, free of charge, within 30 days after notice of the same.

**20. Right to Cancel the Order:**

In case of strike, accident or any other unforeseen contingencies causing stoppage of production at ECIL factory, ECIL reserve the right to cancel and/ or modify the purchase order without liability for any compensation or claim of any description.

## **SectionV – Special Terms& Conditions**

The Bidder is required to give confirmation of their acceptance of the Special Terms and Conditions of the Tender mentioned below, which will automatically be considered as part of the contract concluded with the Bidder.

| <b>Particulars</b>       | <b>Sl. No.</b> | <b>Terms and Conditions</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | <b>Compliance required</b> | <b>(Yes/No) with Deviation if any</b> |
|--------------------------|----------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------|---------------------------------------|
| <b>OEM Authorization</b> | 1.1            | <del>Bids should be accompanied by Valid Authorization Certificate from the OEM as per Annexure-G. Bids not complying this will be rejected</del>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | Complied                   | <b>Not Applicable</b>                 |
| <b>CoC</b>               | 2.1            | <del>A certificate of compliance stating that the Development and Implementation is in compliance with the requirement of Purchase Order, other technical specifications / drawings to the extent specified and agreed upon.</del>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Complied                   | <b>Not Applicable</b>                 |
| <b>Terms of Price:</b>   | 3.1            | The prices shall be quoted by the indigenous bidders strictly on FOR, ECIL, Hyderabad basis and should include all charges towards packing, forwarding, freight, transit insurance and unloading etc.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | Complied                   |                                       |
| <b>Payment Terms:</b>    | 4.1            | (i) No advance payments will be made.<br>(ii) 100% of payment will be released within 45 days from the date of acceptance of the unit by ECIL.<br>(iii) The following documents are to be submitted by the seller with the items for making the payment:<br>(a) E-Invoices must contain "ACK No.", "IRN No.", "IRN Date" and "QR Code".<br>(b) Packing list / Delivery Challan<br>(c) SAP ECC 6.0 end user authorizations issued in the name of ECIL.<br>(d) Deliverables as per PO Scope.<br>(e) Work Completion certificate issued by ECIL project Engineer for Integration of additional SAP ECC 6.0 end user authorizations with existing platform.<br>(f) CoC for PO Deliverables.<br>(g) Order Amendments (if any)<br>Details for electronic payment viz. Account holder's name, Bank name, Branch name and address, Account type, Account number, IFSC code, MICR code, (in case of imports SWIFT Code and BIC number also). | Complied                   |                                       |

|                  |     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |          |                       |
|------------------|-----|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------------------|
|                  |     | <p>Towards making electronic payments account details through cancelled cheque to be submitted.</p> <p>Payment of taxes will be made to the Seller after submission of tax remittance documents and uploading the tax return by the vendor, in turn invoice has to appear in GSTR2A of ECIL.</p> <p>ECIL is registered on TReDS platform with "A-TreDS Ltd. (Invoicemart)". Desirous MSE Bidders / Vendors, who want to receive payments through TReDS platform, have to submit the invoice to ECIL along with all the necessary requirements as per PO and the payment terms. Upon receipt and acceptance of the supplied materials / completion of services and receipt of invoices with the mandated enclosures and after due certification of invoices with enclosures by commercial / material dept, Finance dept shall upload the invoices on the Invoicemart, TReDS platform and process the invoices for payment. Post uploading on the platform, the financier would be bidding for the invoices and respective MSE vendors would be accepting the bid, so that they can get the disbursement from the Financier.</p> <p>(b) MSE bidders desirous to receive payment through TReDS platform may avail the facility if they are already registered on "Invoicemart" TReDS platform or by registering on it.</p> <p>The bids not comply with above payment terms shall be rejected summarily.</p> |          |                       |
| <b>Warranty:</b> | 5.1 | <p><del>Any materials supplied should be free from any defects arising from faulty material, design or workmanship and should be guaranteed for quality / satisfactory performance for a period of 36 months from the date of Acceptance. OEM should provide onsite OEM warranty for the said period.</del></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Complied | <b>Not Applicable</b> |
| <b>PCWG</b>      | 6.1 | <p>Within 15 days of award of Purchase Order, Successful Bidder should submit Security deposit through Bank Guarantee</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | Complied |                       |

|                                 |     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |          |  |
|---------------------------------|-----|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|--|
|                                 |     | strictly as per format in Annexure-L for 5% of Purchase Order value on a Scheduled Bank (except Co-Operative Banks), valid up <b>to 12 Months</b> from the date of issue of Bank Guarantee to cover the Bidder's obligations on Delivery has to be furnished.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |          |  |
|                                 | 6.2 | If the successful Bidder fails to furnish the Security Deposit with the above stipulated time, ECIL reserves the right to cancel PO and invoke Risk Purchase without any further notice.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | Complied |  |
| <b>Liquidated Damages:</b>      | 7.1 | (a) In the event of the Seller's failure to Develop and implement the scope of services as specified in this Purchase Order, the Buyer may, at his discretion, withhold any payment until the completion of the contract. The BUYER may also deduct from the SELLER as agreed, liquidated damages to the sum of 0.5% of the contract price of the delayed/undelivered stores/services mentioned above for every week of delay or part thereof, subject to the maximum value of the Liquidated Damages being not higher than 10% of the value of delayed/undelivered goods/stores.<br>(b) Date of issue of SAP ECC 6.0 end user authorizations in the name of ECIL shall be considered as date of delivery for Phase-1 of the RFQ scope and Date of Integration of additional SAP ECC 6.0 end user authorizations with existing platform will be treated as delivery date for Phase-II of the RFQ scope. | Complied |  |
| <b>Inspection Instructions:</b> | 8.1 | SAP ECC 6.0 end user authorizations issued in the name of ECIL and Integration of additional SAP ECC 6.0 end user authorizations with existing platform will be inspected by ECIL and their decision in the matter will be considered final and copy of inspection report will be forwarded to the supplier in case of rejections.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | Complied |  |

|                             |      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |          |                       |
|-----------------------------|------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------------------|
| <b>Tolerance Clause:</b>    | 9.1  | <del>To take care of any change in the requirement during the period starting from issue of RFQ till placement of the contract, Buyer reserves the right to 15% plus/minus increase or decrease the quantity of the required goods up to that limit without any change in the terms &amp; conditions and prices quoted by the Seller. While awarding the contract, the quantity ordered can be increased or decreased by the Buyer within this tolerance limit.</del>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Complied | <b>Not Applicable</b> |
| <b>Repeat Order Clause:</b> | 10.1 | <del>The Purchase Order will have a Repeat Order Clause, wherein the Buyer can order up to 100% quantity of the items under the present contract within six months from the date of supply/successful completion of this Purchase Order, the cost, terms &amp; conditions remaining the same. The Bidder is to confirm acceptance of this clause. It will be entirely the discretion of the Buyer to place the Repeat order or not.</del>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | Complied | <b>Not Applicable</b> |
| <b>Fall clause:</b>         | 11.1 | <p>The following Fall Clause will form part of the Purchase Order placed on successful Bidder –</p> <p>(a) The price charged for the goods supplied under the Purchase Order by the Seller shall in no event exceed the lowest prices at which the Seller sells the goods or offer to sell goods of identical description to any persons/Organization including the Buyer or any department of the Central Government or any Department of the State Government or any statutory undertaking of the Central or State government as the case may be during the period or till the performance of all Purchase Orders placed during the currency of the contract is completed.</p> <p>(b) If at any time, during the said period the Seller reduces the sale price, sells or offer to sell such stores to any person/organization including the Buyer or any Department of central Government or any Department of the State Government or any Statutory undertaking of the Central or state Government as the case may be at a price lower than the price chargeable under the contract, the Seller shall forthwith notify such reduction or sale or offer of sale to ECIL and the price</p> | Complied |                       |

|                              |      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |          |  |
|------------------------------|------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|--|
|                              |      | <p>payable under the Purchase Order for the goods of such reduction of sale or offer of the sale shall stand correspondingly reduced. The above stipulation will, however, not apply to:-</p> <ul style="list-style-type: none"> <li>(i) Exports by the Seller.</li> <li>(ii) Sale of goods as original equipment at a price lower than the prices charged for normal replacement.</li> <li>(iii) Sale of goods at lower price on or after the date of completion of sale/placement of the order of goods by the authority concerned under the existing or previous Contracts as also under any previous contracts entered into with the Central or State Government Departments, including their undertakings excluding joint sector companies and/or private parties and bodies.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |          |  |
| <b>Risk Purchase clause:</b> | 12.1 | <p>The following Risk Purchase Clause will form part of the Purchase Order placed on successful Bidder –</p> <p>(a) Should the goods or any part thereof not be delivered within the time or times specified in the contract documents, or if defective delivery is made in respect of the goods or any part thereof, the Buyer shall after grant the Seller 60 days to cure the breach, be at liberty, without prejudice to the right to recover liquidated damages as a remedy for breach of contract, to declare the contract as cancelled either wholly or to the extent of such default. ECIL reserves the right to invoke Bank Guarantee for meeting any additional cost incurred.</p> <p>(b) Should the goods or any part thereof not perform in accordance with the specifications / parameters provided by the SELLER during the check proof tests to be done in the BUYER's country, the BUYER shall be at liberty, without prejudice to any other remedies for breach of contract, to cancel the contract wholly or to the extent of such default.</p> <p>(c) In case of a material breach that was not remedied within 60 days, the BUYER shall, having given the right of first refusal to the SELLER be at liberty to purchase, manufacture, or procure from any other source as he thinks fit, other goods of the same or similar description to make good:-</p> <ul style="list-style-type: none"> <li>(i) Such default</li> <li>(ii) In the event of the contract being wholly determined the balance of the</li> </ul> | Complied |  |

|  |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |  |
|--|--|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|--|
|  |  | <p>goods remaining to be delivered there under.</p> <p>(d) Any excess of the purchase price, cost of manufacturer, or value of any goods procured from any other supplier as the case may be, over the contract price appropriate to such default or balance shall be recoverable from the SELLER by invoking the Bank Guarantee/Security deposit for meeting any additional cost incurred.</p> <p>(e) If bidder does not agree to the above Risk Purchase Clause, ECIL reserves the right to reject the order</p> |  |  |
|--|--|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|--|

## **Section VI – Evaluation Criteria of Bid**

### **1. Evaluation Criteria:**

The broad guidelines for evaluation of Bids will be as follows:

- (a) Only those Bids will be evaluated which are found to be fulfilling all the eligibility and qualifying requirements of the RFQ, both technically and commercially.
- (b) In respect of Two-Part Bid system, the techno-commercial bids submitted by the Bidders will be evaluated by the Buyer with reference to the technical characteristics of the items as mentioned in the RFQ along with terms and conditions. The compliance of techno-commercial bids would be determined on the basis of the parameters specified in the RFQ. The Price Bids of only those Bidders will be opened whose Techno-commercial Bids would clear the techno-commercial evaluation.
- (c) The Lowest Bid will be decided upon the lowest price quoted by the particular Bidder as per the Price Format given in our portal. The consideration of taxes and duties in evaluation process will be as follows:
  - (i) L-1 bidder will be determined on all elements of costs including taxes and duties, etc. quoted by the Bidders.
- (d) If there is a discrepancy between the unit price and the total price that is obtained by multiplying the unit price and quantity, the unit price will prevail and the total price will be corrected. If there is a discrepancy between words and figures, the amount in words will prevail for calculation of quoted price.
- (e) The Lowest Acceptable Bid will be considered further for placement of Purchase Order after complete clarification and price negotiations, if any, as decided by the Buyer.

- 2. Price Bid:** The price bid format is as per the format given in the financial offer of the ECIL e-Procurement portal.

**(ON THE LETTER HEAD OF THE COMPANY)**

**Bid Security Declaration Form**

Date: \_\_\_\_\_

Tender No. \_\_\_\_\_

To

ECIL,

ECIL (Post), Hyderabad

In accordance with Government of India, Ministry of Finance OM No. F.9/4/2020-PPD dated 12.11.2020

1. I/We accept that I/We will, automatically be suspended from being eligible for participating in bidding for any contract with you for the period of 1 (One) year, in case of, and starting from the date of, breaching our obligation(s) under the bidding conditions due to:
  - a) Withdrawing our bid, or any part of our bid, during the period of bid validity against the Tender No. \_\_\_\_\_ or any extension of the period of bid validity which we subsequently agreed to;
  - or
  - b) Having been notified of the acceptance of our bid by you during the period of bid validity,
    - (i) Failing or refusing to execute the Contract, or
    - (ii) Failing or refusing to furnish the performance security, if required, in accordance with the Instructions to Bidders.
2. I/We understand this Bid Security Declaration shall expire if we are not the successful Bidder.

Signed:

[signature of person whose name and capacity are shown below]

Name: [name of person signing the Bid Security Declaration], in the capacity of [legal capacity of person signing the Bid Security Declaration]

Duly authorized to sign the bid for and on behalf of: [Name of Bidder]

Dated on \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_

[Corporate Seal (where appropriate)]

## **Annexure – B**

**(To be in the Company letter head)**

**Date:.....**

### **DECLARATION & UNDERTAKING BY MICRO & SMALLSCALE ENTERPRISES/START-UP COMPANIES:**

| <b>Sl. No.</b> | <b>Particulars</b>                                                                                                                                                                       | <b>Details</b>                                                                                                                                                                                                                        |
|----------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1              | Is your organization Proprietary / Partnership / Private Limited Companies / Public Limited Company / Others                                                                             | .....                                                                                                                                                                                                                                 |
| 2              | Does your organization belong to Micro / Small / Medium scale Industry / Start-ups/ others<br>(Please tick mark appropriate box. If bidder is Startup & MSE, then please tick mark both) | <input type="checkbox"/> Micro<br><input type="checkbox"/> Small Scale<br><input type="checkbox"/> Medium<br><input type="checkbox"/> Startup Company<br><input type="checkbox"/> Others                                              |
| 3              | Whether Manufacturer for the tendered items(supply) / Service Provider for the tendered services as per MSE certification.<br>(Please tick mark the appropriate)                         | <input type="checkbox"/> Manufacturer for supply items<br><input type="checkbox"/> Service Provider for services<br><input type="checkbox"/> Trader/reseller/authorized agent/ distributor<br><input type="checkbox"/> Non MSE Bidder |
| 4              | In case you belong to Micro / Small/ Medium Scale Enterprises whether you are registered under SC / ST Category (Please tick mark the appropriate)                                       | <input type="checkbox"/> Yes<br><input type="checkbox"/> No<br><input type="checkbox"/> if yes,<br><input type="checkbox"/> SC<br><input type="checkbox"/> ST                                                                         |

#### **The following declaration should be given by MSEs at the time of tender submission:**

In terms of Tender Conditions applicable for Micro & Small Enterprises (MSEs)/ Star-ups, we hereby declare as under-

- (a) We are a Micro / Small Enterprise, as on bid closing date of this tender.
- (b) We are a Manufacturer of the quoted supply item(s)/service provider for quoted services and valid documentary evidence for same is submitted.
- (c) MSE certificate submitted by us is authentic & valid as on bid closing date of this tender.

We declare the above details are true. In case any of the details are found to be false/ untrue, our offer will be liable for rejection /cancellation of order/ subjected to appropriate actions as per tender Terms & Conditions.

**Authorized Signatory**

**(With Company Seal & Signature)**

**Bill of Quantity (BoQ) Format**

| <b>Item No</b> | <b>Description</b>                                                                                                                             | <b>Qty</b> | <b>Unit</b> |
|----------------|------------------------------------------------------------------------------------------------------------------------------------------------|------------|-------------|
| 1              | <b>Phase-1</b> Supply and Integration of additional SAP ECC 6.0 end user authorizations with existing platform and Support.                    | 100        | Nos         |
| 2              | <b>Phase-2</b> Integration of 3 <sup>rd</sup> Party Application with SAP ECC6.0 through PI/PO module through API Integration and Web Services. | 1          | Lot         |

**Certificate of Conformity Format**

Date:

To,

This is to certify that the items in this shipment have been Developed and Implemented and are in compliance with the requirement of Purchase Order No. \_\_\_\_\_ dated \_\_\_\_\_ and other technical specifications / drawings to the extent specified and agreed upon.

| # | Item Description                                                                                                                              |
|---|-----------------------------------------------------------------------------------------------------------------------------------------------|
| 1 | <b>Phase-1</b> Supply and Integration of additional SAP ECC 6.0 additional end user authorizations with existing platform and Support         |
| 2 | <b>Phase-2</b> Integration of 3 <sup>rd</sup> Party Application with SAP ECC6.0 through PI/PO module through API Integration and Web Services |

Note:

1. These contents should be on Supplier's letter head-only.

**Annexure – E**

**(ON THE LETTER HEAD OF THE BIDDER)**

Date:

**Letter of Declaration**

We, M/s \_\_\_\_\_ hereby declare that we are not blacklisted, debarred or prosecuted by any Central Government or State Government Department/ Government Organization/ PSU for corrupt, fraudulent or any other unethical business practices

We have not any litigation pending with any of the Govt. organizations.

Thank You,

For M/s \_\_\_\_\_  
(AUTHORISED SIGNATORY)

**UN-PRICED BID FORMAT**  
**(To be submitted along with Techno-Commercial Bid)**

| # | Item Description                                                                                                                        | Make | UOM  | Qty | Unit Price (Rs)                                          | Total Cost (Basic ) | Indicative Rate of Taxes, Duties & other charges (as applicable) |          |                                                           | Total Cost (Including all taxes & duties ) | Country of origin |
|---|-----------------------------------------------------------------------------------------------------------------------------------------|------|------|-----|----------------------------------------------------------|---------------------|------------------------------------------------------------------|----------|-----------------------------------------------------------|--------------------------------------------|-------------------|
|   |                                                                                                                                         |      |      |     |                                                          |                     | GST (%)                                                          | HSN Code |                                                           |                                            |                   |
| i | ii                                                                                                                                      | iii  | iv   | v   | vi                                                       | vii                 | viii                                                             | ix       | x                                                         | xi                                         | xii               |
| 1 | Phase-1 Supply and Integration of additional SAP ECC 6.0 end user authorizations with existing platform and Support                     |      | No.s | 100 | <b><u>DO Not mention any prices in this template</u></b> |                     |                                                                  |          | <b><u>DO Not mention any prices in this template.</u></b> |                                            |                   |
| 2 | Phase 2- Integration of 3 <sup>rd</sup> Party Application with SAP ECC6.0 through PI/PO module through API Integration and Web Services |      | Lot  | 1   |                                                          |                     |                                                                  |          |                                                           |                                            |                   |

**Note:** Bidders to mention HSN No and GST % only in this format

**Integrity Pact**

- 1.0 Whereas ECIL having its Factory at ECIL Post, Cherlapally, Hyderabad, Telangana, India-500 062 acting through its Radiation Instruments Division, represented by Additional General Manager (HoD/RID) hereinafter referred to as the **Principal** and the first party, proposes to award Purchase Order/Works Contract for .....
- .....and
- M/s.....**, represented by ....., Chief Executive Officer (which term, unless expressly indicated by the contract, shall be deemed to include its successors and its assignee), hereinafter referred to as the **Supplier** and the second party, is willing to offer/ has offered the stores/services.
- 2.0 Whereas, the Supplier is a private company/public company/partnership/registered export agency, constituted in accordance with the relevant law in the matter and the Principal is a Public Sector Undertaking under Government of India.

**Objectives:**

- 3.0 Now, therefore, the Principal and the Supplier agree to enter into this pre-contract agreement, hereinafter referred to as Integrity Pact, to avoid all forms of corruption by following a system that is fair, transparent and free from any influence / unprejudiced dealings prior to, during and subsequent to the currency of the contract to be entered into with a view to:
- 3.1 Enabling the Principal to obtain the desired product at a competitive price in accordance with the specifications by avoiding the high cost and the distortionary impact of corruption on public procurement, and
- 3.2 Enabling Supplier to abstain from bribing or any corrupt practice in order to secure the contract by providing assurance to them that their competitors will also refrain from bribing and other corrupt practices and the Principal will commit to prevent corruption in any form by their officials by following transparent procedures.

**Commitments of the Principal:**

**4.0 The Principal commits itself to the following:**

- 4.1 The Principal undertakes that no official of the Principal, connected directly or indirectly with the contract, will demand, take a promise for or accept, directly or through intermediaries, any bribe, consideration, gift, reward, favour or any material or immaterial benefit or any other advantage from the Supplier, either for themselves or for any person, organization or third party related to the contract in exchange for an advantage in the bidding process, bid evaluation, contracting or implementation process related to the Contract.
- 4.2 The Principal will, during the pre-contract stage, treat all Suppliers alike, and will provide to all Suppliers the same information and will not provide

any such information to any particular Supplier which could afford an advantage to that particular Supplier in comparison to other Suppliers.

All the officials of the Principal will report to the Management any attempted or completed breaches of the above commitments as well as any substantial suspicion of such a breach. No employee of the Principal, personally or through family members, will in connection with the tender for, or the execution of contract, demand, take a promise for or accept, for self or third person, any material benefit which the person is not legally entitled to.

- 5.0 In case any such preceding misconduct on the part of such official (s) is reported by the Supplier to the Principal, with full and verifiable facts and the same is prima facie found to be correct by the Principal, necessary disciplinary proceedings, or any other action as deemed fit, including criminal proceedings may be initiated by the Principal and such a person shall be debarred from further dealings related to the contract process. In such a case while an enquiry is being conducted by the Principal the proceedings under the contract would not be stalled.

#### **Commitments of Supplier:**

- 6.0 The Supplier commits himself to take all measures necessary to prevent corrupt practices, unfair means and illegal activities during any stage of his bid or during any pre-contract or post-contract stage in order to secure the contract or in furtherance to secure it and in particular commits himself to the following:

6.1 The Supplier will not offer, directly or through intermediaries, any bribe, consideration, gift, reward, favour, any material or immaterial benefit or other advantage, commission, fees, brokerage or inducement to any official of the principal, connected directly or indirectly with bidding process, or to any person, organization or third party related to the contract in exchange for any advantage in the bidding, evaluation, contracting and implementation of the Contract.

6.2 The Supplier further undertakes that he has not given, offered or promised to give, directly or indirectly any bribe, gift, consideration, reward, favour, any material or immaterial benefit or other advantage, commission, fees, brokerage or inducement to any official of the Principal or otherwise in procuring the Contract or forbearing to do or having done any act in relation to the obtaining or execution of the Contract or any other Contract with the Principal for showing or forbearing to show favour or disfavour to any person in relation to the Contract or any other Contract with respect to the Principal's Organization.

6.3 The Supplier will not collude with other parties interested in the contract to impair the transparency, fairness and progress of the bidding process, bid evaluation, contracting and implementation of the contract.

6.4 The Supplier will not accept any advantage in exchange for any corrupt practice, unfair means and illegal activities.

6.5 The Supplier confirms and declares to the Principal that it has not engaged any individual or firm or company whether Indian or foreign to intercede, facilitate or in any way to recommend to the Principal, or any of its functionaries, whether officially or unofficially to the award of the contract to the Supplier; nor has any amount been paid, promised or intended to be paid to

any such individual, firm or Company in respect of any such intercession, facilitation or recommendation.

6.6The Supplier, either while presenting the bid or during pre-contract negotiations or before signing the contract, shall disclose any payments he has made, is committed to or intends to make to officials of the Principal or their family members, agents, brokers or any other intermediaries in connection with the contract and the details of services agreed upon for such payments.

6.7The Supplier shall not use improperly, for purposes of competition or personal gain, or pass on to others, any information provided by the Principal as part of the business relationship, regarding plans, technical proposals and business details; including information contained in any electronic data carrier. The Supplier also undertakes to exercise due and adequate care lest any such information is divulged.

6.8The Supplier commits to refrain from giving any complaint directly or through any other manner without supporting it with full and verifiable facts.

6.9The Supplier shall not instigate or cause to instigate any third person to commit any of the actions mentioned above.

#### **7.0 Previous Transgression:**

7.1 The Supplier declares that no previous transgression occurred in the last three years immediately before signing of this Integrity Pact, with any other company in any country in respect of any corrupt practices envisaged herein or with any Public Sector Enterprise in India or any Government Department in India, that could justify Suppliers' exclusion from the tender process.

7.2If the Supplier makes incorrect statement on this subject, Supplier can be disqualified from the tender process or the contract, if already awarded, can be terminated for such reason.

#### **8.0 ~~Integrity Pact Bank Guarantee (IPBG)~~**

~~8.1In case of successful Supplier a clause would also be incorporated in the Article pertaining to performance Bond in the Purchase Contract that the provisions of Sanctions for Violation shall be applicable for forfeiture of Performance Bond in case of a decision by the principal to forfeit the same without assigning any reason for imposing Sanction for violation of this Pact.~~

~~8.2The provisions regarding sanctions for violation in Integrity Pact include forfeiture of Performance Bond in case of decision by the Principal to forfeit the same without assigning any reason for imposing sanction for violation of Integrity Pact.~~

#### **9.0 Company Code of Conduct:**

Suppliers are also advised to have a company code of conduct (clearly rejecting the use of bribes and other unethical behavior) and a compliance program for the implementation of the code of conduct throughout the company.

#### **10.0 Sanctions for Violation:**

10.1 Any breach of the aforesaid provisions by the Supplier or any one employed by him or acting on the behalf (whether with or without the knowledge of the Supplier) or the commission of any offence by the Supplier or any one employed by him or acting on his behalf, as defined in Chapter IX of the Indian Penal Code, 1860 or the Prevention of Corruption Act 1988 or any other act enacted for the prevention of corruption shall entitle the Principal to take all or any one of the following action, wherever required:

- i. To immediately call off the pre-contract negotiations without assigning any reason or giving any compensation to the Supplier and to impound any earnest money deposit, if made by the Supplier. However the proceedings with the other Supplier(s) would continue.
- ii. The Earnest Money / Security Deposit shall stand forfeited either fully or partially, as decided by the Principal and the Principal shall not be required to assign any reason therefore.
- iii. To immediately cancel the contract, if already signed without giving any compensation to the Supplier.
- iv. To recover all sums already paid by the Principal, and in case of an Indian Supplier with interest thereon at 2% higher than the prevailing Prime Lending Rate, while in case of a Supplier from a country other than India with interest thereon at 2% higher than the LIBOR. If any outstanding payment is due by the Principal to the Supplier in connection with any other contract for any other stores, such outstanding payment could also be utilized to recover the aforesaid sum and interest.
- v. To en-cash the bank guarantee and performance bond/warranty bond, if furnished by the Supplier, in order to recover the payments, already made by the Principal, along with interest.
- vi. To cancel all or any other Contracts with the Supplier.
- vii. To debar the Supplier from entering into any bid from the Principal for a minimum period of five years, which may be further extended at the discretion of the ECIL.
- viii. To recover all sums paid in violation of this pact by the Supplier(s) to any middleman or agent or broker with a view to securing the contract.
- ix. If the Supplier or any employee of the Supplier or any person acting on behalf of the Supplier, either directly or indirectly, is closely related to any of the officers of the principal, or alternatively, if any close relative of an officer of the Principal has financial interest/stake in the Supplier's firm, the same shall be disclosed by the Supplier at the time of filing of tender. Any failure to disclose the interest involved shall entitle the Principal to rescind the contract without payment of any compensation to the Supplier.
- x. The term 'close relative' for this purpose would mean spouse whether residing with the Principal's employee or not, but not include a spouse separated from the Principal's employee by a decree or order of a

competent court; son or daughter or step son or step daughter and wholly dependent upon Principal's employee, but does not include a child or step child who is no longer in any way dependent upon the Principal's employee or of whose custody the Principal's employee has been deprived of by or under any law; any other person related, whether by blood or marriage, to the Principal's employee or to the Principal's employee's wife or husband and wholly dependent upon Principal's employee.

- xi. The Supplier shall not lend to or borrow any money from or enter into any monetary dealings or transactions, directly or indirectly, with any employee of the Principal, and if he does so, the Principal shall be entitled forthwith to rescind the contract and all other contracts with the Supplier. The Supplier shall be liable to pay compensation for any loss or damage to the principal resulting from such rescission and the Principal shall be entitled to deduct the amount so payable from the money(s) due to the Supplier.
- xii. In cases where irrevocable Letters of Credit have been received in respect of any contract signed by the Principal with the Supplier, the same shall not be opened.

10.2 The decision of the Principal or his nominee to the effect that the Supplier has committed breach of the provisions of this Integrity Pact shall be final and binding on the Supplier, however the Supplier can approach monitor (s) appointed for the purpose of this Pact as per Clause 10 of Pact agreement.

#### **11.0 Fall clause:**

The Supplier undertakes that he has not supplied/is not supplying the similar systems or subsystems at a price lower than that offered in the present bid in respect of any other Public Sector undertakings and if it is found at any stage that the similar system or subsystem was supplied by the Supplier to any other Public Sector undertakings at a lower price, then that very price, with due allowance for elapsed time, will be applicable to the present case and the difference in the cost would be refunded by the Supplier to the principal, if the contract has already been concluded.

#### **12.0 Independent External Monitor (s):**

12.1 The Principal can appoint Independent External Monitor for this Pact if required in consultation with Central Vigilance Commission. The task of the Monitor is to review independently and objectively, whether and to what extent the parties comply with the obligations under this agreement.

The Monitor is not subject to instructions by the representatives of the parties and performs his functions neutrally and independently. He will convey his observations to the Chairman & Managing Director of ECIL.

12.2 The Supplier accepts that the Monitor has the right to access without restriction to all project documentation of the Principal including that provided by the Supplier. The Supplier will also grant the Monitor, upon his request and demonstration of a valid interest, unrestricted and unconditional access to his project documentation. The same is applicable to Subcontractors. The Monitor is under obligation to treat the information and documents of the Supplier(s) / Contractor(s) / Subcontractor(s) with confidentiality.

12.3 As soon as the Monitor notices, or believes to notice, a violation of this agreement, he will so inform the Management of the Principal and request the Management to discontinue or take corrective action, or to take other relevant action.

12.4 The Principal reserves the right to refer a particular case to any other approved Independent External Monitor(s) as and when felt necessary. In such an event, the IEM nominated as per Para 12.1 shall examine the case jointly with those whom the case is referred to as per this Para.

12.5 CVC has approved following officials as IEMs for ECIL

1) Shri Suresh Chandra Panda, IAS (Retd.)

301, Sai Ashirbad, K-I/196,

Kalinga Nagar, Bhubaneswar,

Odisha – 751003.

E-Mail ID: sureshpanda@yahoo.com

Mobile: +91 9910666101

(Tenure of Appointment: 01.06.2023 to 31.05.2026)

2. Shri Nand Kumar Mishra, IPS (Retd.)

H.No. 58, Greenwoods Society,

Phase - II, Greater Noida,

GautamBuddh Nagar,

Uttar Pradesh – 201310.

E-Mail ID: lambodhar2021@gmail.com

Mobile: +91 6391771144

(Tenure of Appointment: 23.06.2023 to 22.06.2026)

### **13.0 Examination of Books of Accounts:**

In case of any allegation of violation of any provisions of this Integrity Pact to the satisfaction of the Principal, the Principal or its agencies shall be entitled to examine / investigate the Books of Accounts of the Supplier and the Supplier shall provide necessary information of the relevant financial documents in English and shall extend all possible help for the purpose such examination / investigation.

### **14.0 Law and Place of Jurisdiction:**

This Pact is subject to Indian Law. The place of performance and Jurisdiction is the Registered Office of the Principal at Hyderabad.

### **15.0 Other Legal Actions:**

The actions stipulated in this Integrity Pact are without prejudice to any other legal action that may follow in accordance with the provisions of the extant law in force relating to any civil or criminal proceedings.

### **16.0 Validity:**

16.1 The validity of this Integrity Pact shall be from date of its signing and extend till the complete execution of the contract to the satisfaction of both the Supplier and the principal.

16.2 Should one or several provisions of this Pact turn out to be invalid, the remainder of this Pact remains valid. In this case, the parties will strive to come to an agreement to their original intentions.

**17.0 The Parties hereby sign this Integrity Pact at\_\_\_\_\_on\_\_\_\_\_**

ECIL  
General Manager (CSS & CSG)  
Electronics Corporation of India Ltd

SUPPLIER  
Chief Executive Officer

Witness

1-----

2-----

Witness

1-----

2-----

## **Annexure – I**

### **EXCEPTIONS & DEVIATIONS**

The tenderer shall clearly specify their exceptions & deviations list in the form given below.

| <b>S. No</b> | <b>Clause / Sub-clause/Specifications</b> | <b>Deviations if any</b> |
|--------------|-------------------------------------------|--------------------------|
|              |                                           |                          |
|              |                                           |                          |
|              |                                           |                          |
|              |                                           |                          |
|              |                                           |                          |
|              |                                           |                          |
|              |                                           |                          |

**(SEAL & SIGNATURE OF THE BIDDER)**

Note:

If bidder fully complies all the clauses of tender, bidder to submit this annexure with statement “Nil Deviations”.

## **Annexure –J**

### **Document Checklist**

#### **Documents to Be Submitted by The Bidder**

All documents mentioned in check list should be signed, stamped, serially arranged/ indexed and submitted along with Technical Bid.

| <b>S. No</b> | <b>Particulars of Document</b>                                                                                                                                                                                                                                                                                  | <b>Enclosed (Yes/No)</b> |
|--------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|
| 1            | Bidder to submit the signed & stamped copy of RFQ document i.e. Terms & Conditions to accept the all the tender clauses mentioned therein.                                                                                                                                                                      |                          |
| 2            | Compliance to Technical Specifications mentioned in Section-VII.<br>Note: Any vague data or partially filled compliance may lead to rejection of the bid on technical ground. Bidder should read all the specifications carefully and fill the required data as supported by bidder's quoted model              |                          |
| 3            | Annexure-A: Bidder to submit filled, signed & stamped copy of Bid Security Declaration form in bidder's letter head                                                                                                                                                                                             |                          |
| 4            | Annexure-B: MSE Declaration Form, Annexure –C for Bill of Quantity (BOQ)& Annexure –E for Letter of Declaration Bidder to submit filled, signed & stamped copy in bidder's letter head                                                                                                                          |                          |
| 5            | Annexure- F: Bidder should furnish detailed Bill of Materials (BOM) mentioning Part Number, Make& Model and Country of Origin (other than China) in the Un-Priced Bid format without mentioning prices                                                                                                          |                          |
| 6            | Annexure-I: Deviations list/statement to tender clauses, if any. (Note: Minor Deviations to the tender specs will be reviewed by the purchaser and end user and it is at the sole discretion of the purchaser/end-user to accept or reject such deviations from vendors without giving any reasons whatsoever.) |                          |
| 7            | Annexure-K: Bidder to raise the queries in Pre-bid Query Format only before pre-bid due date. If there are no queries regarding tender technical & commercial clauses, "Nil Pre-bid query document" shall be submitted along with the bid                                                                       |                          |
| 8            | Annexure – L: Bidder to submit the Qualification Criteria (Turnover & Previous Work Orders) document in the format attached.                                                                                                                                                                                    |                          |
| 9            | Integrity Pact                                                                                                                                                                                                                                                                                                  |                          |
| 10.          | SAP Partner details either Online /Offline<br><a href="https://www.sap.com/partners/find.html">https://www.sap.com/partners/find.html</a>                                                                                                                                                                       |                          |
| 11           | Pre-bid Meeting Participation                                                                                                                                                                                                                                                                                   |                          |

**(SEAL & SIGNATURE OF THE BIDDER)**

## **Annexure – K**

### **Pre-Bid Query Format**

Tender No : EC/PUR/ITSD/1100000184.

Scope of Work : Supply and Integration of additional SAP ECC 6.0 end user authorizations with existing platform and Support as per Technical Specifications mentioned in Annexure-T1 to ECIL-Hyderabad.

| <b>S. No</b> | <b>Tender Reference<br/>SI. No./Clause No</b> | <b>Tender Point /Clause<br/>Description</b> | <b>Clarification Sought by<br/>Bidder</b> |
|--------------|-----------------------------------------------|---------------------------------------------|-------------------------------------------|
|              |                                               |                                             |                                           |
|              |                                               |                                             |                                           |
|              |                                               |                                             |                                           |
|              |                                               |                                             |                                           |
|              |                                               |                                             |                                           |
|              |                                               |                                             |                                           |
|              |                                               |                                             |                                           |
|              |                                               |                                             |                                           |

**(SEAL & SIGNATURE OF THE BIDDER)**

Note:

If there are no queries regarding tender technical & commercial clauses, bidder to submit this annexure with a statement “No Pre-bid Queries”.

**Annexure – L**

**(ON THE LETTER HEAD OF THE COMPANY)**

**Declaration for Bidder Qualification Criteria  
(Turnover & Previous Work Orders)**

Date:

Tender No : EC/PUR/ITSD/6600000044

Scope of Work : Supply and Integration of additional SAP ECC 6.0 end user authorizations with existing platform and Support as per Technical Specifications mentioned in Annexure-T1 to ECIL-Hyderabad.

We, M/s \_\_\_\_\_ hereby declare that following are the details of bidder qualification criteria for above mentioned tender reference

**Turnover:**

| S. No | Year    | Company Turnover  | Profit Loss statement/ CA certification |
|-------|---------|-------------------|-----------------------------------------|
| 1     | 2024-25 | Bidder to specify | Yes/No                                  |
| 2     | 2022-23 | Bidder to specify | Yes/No                                  |
| 3     | 2022-23 | Bidder to specify | Yes/No                                  |

**Previous Work Orders:**

| S. No | P.O Ref | P.O Date | Customer Details | Item Description | P.O Value (INR) | Invoice Date | Invoice Value (INR) |
|-------|---------|----------|------------------|------------------|-----------------|--------------|---------------------|
| 1     |         |          |                  |                  |                 |              |                     |
| 2     |         |          |                  |                  |                 |              |                     |
| 3     |         |          |                  |                  |                 |              |                     |
| 4     |         |          |                  |                  |                 |              |                     |
| 5     |         |          |                  |                  |                 |              |                     |

**Performance Cum Warranty Guarantee (PCWG)FORMAT**

**To**

**M/s Electronics Corporation of India Limited**

ECIL (P.O),

Hyderabad – 500 062

Bank Guarantee in respect of Contract No./ Letter of Intent No \_\_\_\_\_ Dated \_\_\_\_\_ between M/s. Electronics Corporation of India Limited and \_\_\_\_\_ (Name of the Supplier).

This Deed of Guarantee made this \_\_\_\_\_ day of \_\_\_\_\_, Two Thousand \_\_\_\_\_ between \_\_\_\_\_ (Name of the Bank with address), (hereinafter called the 'Guarantor'), which expression shall unless repugnant to the context or meaning thereof be deemed to include its successors and assigns of the One Part, and

Electronics Corporation of India Limited, (a Government of India Enterprise), a Company incorporated under the Companies Act, 1956, having its Registered Office at Hyderabad – 500062, India (herein after called the 'Company'), which expression shall unless repugnant to the context or meaning thereof be deemed to include its successors and assigns, of the Other Part.

Whereas M/s \_\_\_\_\_ (Supplier/Contractor/Company Name and address) (herein after referred to as the Contractor) was awarded contract No. \_\_\_\_\_ dated \_\_\_\_\_ (hereinafter referred to as the Contract) by the Company for \_\_\_\_\_ (Scope of Work). And whereas the contract inter-alia, provides that the Supplier shall furnish Bank Guarantee to the Company a sum of Rs. \_\_\_\_\_ (Rupees \_\_\_\_\_ only) towards due and faithful performance of the contract in the form and manner specified therein covering the obligations of the contractor.

And whereas the contractor has approached the Guarantor and in consideration of the arrangement arrived at between the contractor and the Guarantor, the Guarantor has agreed to give Guarantee as hereinafter mentioned in favour of the Company.

Now this Deed witnesses as follows:

1. The Guarantor do hereby guarantee to the Company the due and faithful performance, observance or execution of the contract by the Supplier and further unconditionally and irrevocably undertake to pay to the Company without demur and merely on a demand, to the extent of Rs. \_\_\_\_\_ (Rupees \_\_\_\_\_) when claim is made by the Company on them for any loss, damage, costs, charges and expenses caused to or suffered by the Company by reason of the contractor making any default in the performance, observance or execution of the terms, conditions, stipulations or undertakings or any one of them as contained in The contract.
2. The decision of the Company whether any default has occurred or has been committed by the contractor in the performance, observance, discharge, execution of any of the terms, conditions, stipulations or undertakings or any one of them as contained in the contract and/or as to the extent of loss or damage costs, charges and expenses caused to or suffered by the Company by reason of the contractor making any default in the performance, observance or discharge of any of the terms, conditions, stipulations or undertakings or any one of them shall be conclusive and binding on the Guarantor, irrespective of the fact whether the contractor admits or denies the faults or questions the correctness of any demand made by the Company in any Court, Tribunal or Arbitration proceedings or before any other Authority.

3. The Company shall have the fullest liberty without affecting in any way the liability of the Guarantor under this Guarantee from time to time to vary any of the terms and conditions of the contract or extend time of performance by the Supplier or to postpone for any time and from time to time any of the powers exercisable by it against the said contractor and either to enforce or forbear from enforcing any of the said terms and conditions governing the said contract and the Guarantor shall not be released from its liability under these presents and the liability of the Guarantor here under shall remain in full force and effect notwithstanding any exercise by the Company of the liberty with reference to the matters aforesaid or by reason of time being given to the contractor or any other forbearance, act or omission on the part of the Company or any indulgence by the Company to the said contractor or of any other matter or thing whatsoever which under the law relating to sureties, would, but for this provision have the effect of so releasing the Guarantor from its liability under this Guarantee.
4. The Guarantor further agrees that the Guarantee herein contained shall remain in full force and effect during the period that would be taken for the performance of the contract and its claims satisfied or discharged and till the Company certifies that the terms and conditions of the contract have been fully and properly carried out by the contractor and accordingly discharges this Guarantee subject to, however, that the Company shall have no claim under this Guarantee after \_\_ (months) from the date of completion of the contract, as the case may be, unless a notice of the claim under this Guarantee has been served on the Guarantor before the expiry of the said period in which case the same shall be enforceable against the Guarantor notwithstanding the fact that the same is enforced after the expiry of the said period.
5. The Guarantor undertakes not to revoke this Guarantee during this period it is in force except with the previous consent of the Company in Writing, and agree that any liquidation or winding up or dissolution or any change in the constitution of the contractor or the Guarantor shall not discharge the Guarantor's liability hereunder.
6. It shall not be necessary for the Company to proceed against the contractor before proceeding against the Guarantor and the Guarantee herein contained shall be enforceable against them notwithstanding any security, which the Company may have obtained or obtained from the contractor shall, at the time when the proceedings are taken against the Guarantor hereunder be outstanding or unrealized.
7. The Guarantor hereby declares that it has power to execute this Guarantee under its Memorandum and Articles of Association and the executants has full powers to do so on its behalf and the Power of Attorney dated \_\_\_\_\_, granted to him/her by the proper authority of the Guarantor.
8. This Guarantee is valid till \_\_\_\_\_ and the Company is entitled to lodge its claim on the Guarantor on or before \_\_\_\_\_ (additional 15 days). The Guarantor hereby undertakes to honour the said invocation without demur.

Witness:

Signed for and on behalf of the Bank (Guarantor)

- 1.
- 2.

**\*\* End of the Document\*\***